

THE GENERAL ASSEMBLY OF PENNSYLVANIA

SENATE BILL

No. 1090 Session of
2025

INTRODUCED BY PENNYCUICK, MILLER, ARGALL, VOGEL, COSTA,
LANGERHOLC, MARTIN, HAYWOOD, GEBHARD, J. WARD, BAKER,
ROBINSON, STEFANO, CAPPELLETTI, FARRY, PISCIOTTANO, KANE AND
BROOKS, NOVEMBER 14, 2025

AS AMENDED ON SECOND CONSIDERATION, FEBRUARY 3, 2026

AN ACT

1 Providing for disclosures and safeguards relating to the use of
2 artificial intelligence; and imposing duties on the Attorney
3 General.

4 The General Assembly of the Commonwealth of Pennsylvania
5 hereby enacts as follows:

6 Section 1. Short title.

7 This act shall be known and may be cited as the Safeguarding
8 Adolescents from Exploitative Chatbots and Harmful AI Technology
9 Act.

10 Section 2. Definitions.

11 The following words and phrases when used in this act shall
12 have the meanings given to them in this section unless the
13 context clearly indicates otherwise:

14 "AI companion." As follows:

15 (1) A system using artificial intelligence, generative
16 artificial intelligence or emotional recognition algorithms
17 designed to simulate a sustained human or human-like

1 relationship with a user by:

2 (i) Retaining information on prior interactions or
3 user sessions and user preferences to personalize the
4 interaction and facilitate ongoing engagement.

5 (ii) Asking unprompted or unsolicited emotion-based
6 questions that go beyond a direct response to a user
7 prompt.

8 (iii) Sustaining an ongoing dialogue concerning
9 matters personal to the user.

10 (2) The term does not include:

11 (i) A system used by a business entity solely for
12 customer service or to strictly provide users with
13 information about available commercial services or
14 products provided by the business entity, customer
15 service account information or other information strictly
16 related to the business entity's customer service.

17 (ii) A system that is primarily designed and
18 marketed for providing efficiency improvements, research
19 or technical assistance.

20 (iii) A system used by a business entity solely for
21 internal purposes or employee productivity.

22 (iv) A bot that is a feature of a video game and is
23 limited to replies related to the video game that cannot
24 discuss topics related to mental health, self-harm or
25 sexually explicit conduct or maintain a dialogue on other
26 topics unrelated to the video game.

27 (v) A stand-alone consumer electronic device that
28 functions as a speaker and voice command interface, acts
29 as a voice-activated virtual assistant and does not
30 sustain a relationship across multiple interactions or

1 generate outputs that are likely to elicit emotional
2 responses in the user.

3 "AI companion platform." A platform that allows a user to
4 engage with AI companions.

5 "Artificial intelligence" or "AI." All of the following:

6 (1) A machine-based system that can, for a given set of
7 human-defined objectives, make predictions, recommendations
8 or decisions influencing real or virtual environments,
9 including the ability to:

10 (i) perceive real and virtual environments;

11 (ii) abstract perceptions made under this paragraph
12 into models through analysis in an automated manner; and

13 (iii) use model inference to formulate options for
14 information or action based on outcomes under
15 subparagraphs (i) and (ii).

16 (2) The term includes generative artificial
17 intelligence.

18 "Artificial intelligence model." A component of an
19 information system that implements artificial intelligence
20 technology and uses computational, statistical or machine-
21 learning techniques to produce outputs from a given set of
22 inputs.

23 "Generative artificial intelligence." The class of models
24 that emulate the structure and characteristics of input data in
25 order to generate derived synthetic content, including
26 information such as images, videos, audio clips or text, that
27 has been significantly modified or generated by algorithms,
28 including by artificial intelligence.

29 "Human or human-like relationship." Intimate, romantic or
30 platonic interactions or companionship.

1 "Minor." An individual in this Commonwealth under 18 years
2 of age.

3 "Operator." A person or business that makes an AI companion
4 platform available to a user in this Commonwealth.

5 "Sexually explicit conduct." As defined in 18 U.S.C. § 2256
6 (relating to definitions for chapter).

7 Section 3. Required disclosures and safeguards.

8 (a) Disclosure of nonhuman status.--If a reasonable person
9 interacting with an AI companion would be misled to believe the
10 person is interacting with a human, an operator shall issue a
11 clear and conspicuous notification indicating that the AI
12 companion is artificially generated and not human.

13 (b) Suicide and self-harm safeguards.--

14 (1) An operator shall maintain and implement a protocol,
15 to the extent technologically feasible, to prevent an AI
16 companion on its platform from producing suicidal ideation,
17 suicide or self-harm content to a user, or content that
18 directly encourages the user to commit acts of violence. The
19 protocol shall include providing a notification to the user
20 referring the user to crisis service providers, including a
21 suicide hotline or crisis text line, if the user expresses
22 suicidal ideation, suicide or self-harm.

23 (2) The operator shall publish details of the protocol
24 required under paragraph (1) on its publicly accessible
25 Internet website.

26 (c) Safeguards for minors.--For a user that the operator
27 knows, ~~or should reasonably suspect~~ OR SHOULD HAVE KNOWN, is a <--
28 minor, the operator shall:

29 (1) Disclose to the user that the user is interacting
30 with artificial intelligence and not an actual human being.

1 (2) Provide by default a clear and conspicuous
2 notification to the user at least once every three hours
3 during continuing interactions that reminds the user to take
4 a break and that the AI companion is artificially generated
5 and not human.

6 (3) Institute reasonable measures to prevent its AI
7 companion from producing visual material of sexually explicit
8 conduct or directly instructing the minor to engage in
9 sexually explicit conduct.

10 (d) General disclosure.--~~An~~ IF A SERVICE IS OFFERED TO USERS <--
11 THAT AN OPERATOR KNOWS ARE MINORS, AN operator shall disclose to
12 users of its AI companion platform, on the application, browser
13 or any other format through which the platform is accessed, that
14 AI companions may not be suitable for some minors.

15 Section 4. Applicability.

16 This act shall not apply to the underlying artificial
17 intelligence model unless the model is directly offered,
18 configured or deployed as an AI companion.

19 Section 5. Enforcement.

20 (a) Attorney General.--The Attorney General shall enforce
21 this act.

22 (b) Civil penalty.--An operator that violates this act shall
23 be liable for, IN ADDITION TO ANY OTHER REMEDY PROVIDED BY LAW, <--
24 a civil penalty in an amount not to exceed \$10,000 per violation
25 to be collected in a civil action filed by the Attorney General.

26 Section 6. Effective date.

27 This act shall take effect in 120 days.